

Dilbag Singh And Another vs State Of Punjab And Another on 23 April, 2010

Author: Sabina

Bench: Sabina

Crl.Misc. No.M-12563 of 2009 (O&M)

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IN THE HIGH COURT OF PUNJAB & HARYANA, CHANDIGARH

Crl. Misc. No. M-12563 of 2009 (O&M)

Date of Decision: April 23 , 2010

Dilbag Singh and another

.....Petitioners

Versus

State of Punjab and another

.....Respondents

Coram: Hon'ble Mrs. Justice Sabina

Present: Mr.Deepak Sabherwal, Advocate for the petitioners
Mr.Amandeep Singh Rai, Assistant Advocate General, Punjab
None for respondents No. 2 and 3

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Sabina, J.

Petitioners have filed this petition under Section 482 of the Code of Criminal Procedure (for short `Cr.P.C.) seeking quashing of FIR No. 179 dated 19.9.2006 under Sections 406,498-A IPC (Annexure P1) registered at Police Station City Kapurthala and all the subsequent proceeding arising thereto.

The contents of the FIR read as under:-

" To, SSP, Kapurthala.Sir, it is respectfully submitted that I, Manjit Kaur, w/o Sarabjit Singh is resident of Mohalla Jattapura, Kapurthala and my daughter Kamaljit Kaur was married to Dilbag

Singh s/o Gurmit Singh r/o Mohalla Preet Nagar Markfed, Gali No.1, Kapurthala and at that time we were the residents of village Bassi, Tehsil Bholath, District Kapurthala. Soon after the marriage, the in-laws of my daughter Kamaljit Kaur, her in-laws namely Gurmit Singh (father-in-law), Karamjit Kaur (mother-in-law), Geeta and Harpreet Kaur (sister-in-law) started torturing my daughter. The father-in-law i.e. Gurmit Singh of my daughter is clever and tactful person and by levelling number of allegations against my daughter started torturing her and also used to beat her on certain occasions and they often used to beat and push out her out of the house. Regarding this, many times settlement has been arrived by your goodself. On your decision, my daughter was sent back with Dilbag Singh but her father-in-law also came alongwith them and started torturing my daughter. He was demanding Rs.1,00,000/- in cash from my daughter in order to send his son abroad and further says that only then he will let his son to meet my daughter. Sisters-in-law Geeta said that if your parents will give Rs.60,000/- then only I will let you meet with your family. On 28 April 2006 a son was born and I send sweet boxes to them and no body came to see him and contrary to that started threatening us that we are not going to let your daughter settle down. Do whatever you want to do. So my daughter be kindly settled in her matrimonial house and justice be delivered to us. Sd/-Manjit Kaur w/o Sarabjit Singh r/o Mohalla Jattapura, Near Beriwal Gurdwara Kapurthala."

None has appeared on behalf of respondents No. 2 and 3 despite service.

Learned counsel for the petitioners has submitted that respondent No.2 was married with petitioner No.1 on 29.4.2004. They were blessed with two children. However, differences arose between the parties and as a result litigation arose between them.

Manjit Kaur-respondent No.3, mother of Kamaljit Kaur-respondent no.2 lodged the FIR in question. A compromise was effected between Kamaljit Kaur and petitioners. Petitioner No.1 and Kamaljit Kaur moved a petition under Section 13-B of the Hindu Marriage Act, 1995 (for short 'the Act') for dissolution of their marriage by mutual consent. The said decree was passed on 6.6.2008. Now the private respondents had failed to honour the compromise. However, despite compromise, Kamaljit Kaur had now got remarried with Rajinder Raja.

After hearing the learned counsel for the parties, I am of the opinion that the instant petition deserves to be allowed.

It has been held in paras 5 to 8 by the Apex Court in Ruchi Agarwal vs. Amit Kumar Agarwal 2005(3) SCC 299 which read as under:-

"5. From the above narrated facts, it is clear that in the compromise petition filed before the Family Court, the appellant admitted that she has received Stridhan and maintenance in lump sum and that she will not be entitled to maintenance of any kind in future. She also undertook to withdraw all proceedings civil and criminal filed and initiated by her against the respondents within one month of the compromise deed which included the complaint under Sections 498A, 323 and 506 IPC and under Sections 3 and 4 of Dowry Prohibition Act from which complaint this appeal arises. In the said compromise, the respondent-husband agreed to withdraw his petition

filed under Section 9 of the Hindu Marriage Act pending before the Senior Judge, Civil Division, Rampur and also agreed to give a consent divorce as sought for by the appellant.

6. It is based on the said compromise the appellant obtained a divorce as desired by her under Section 13(B) of the Hindu Marriage Act and in partial compliance of the terms of the compromise she withdrew the criminal case filed under Section 125 of the Criminal Procedure Code but for reasons better known to her she did not withdraw that complaint from which this appeal arises. That apart after the order of the High Court quashing the said complaint on the ground of territorial jurisdiction, she has chosen to file this appeal. It is in this background, we will have to appreciate the merits of this appeal.

7. Learned counsel appearing for the appellant, however, contended that though the appellant had signed the compromise deed with the above -mentioned terms in it, the same was obtained by the respondent-husband and his family under threat and coercion and in fact she did not receive lump sum maintenance and her Stridhan properties, we find it extremely difficult to accept this argument in the background of the fact that pursuant to the compromise deed the respondent-husband has given her a consent divorce which she wanted thus had performed his part of the obligation under the compromise deed. Even the appellant partially performed her part of the obligations by withdrawing her criminal complaint filed under Section 125. It is true that she had made a complaint in writing to the Family Court where Section 125 Cr.P.C. proceedings were pending that the compromise deed was filed under coercion but she withdrew the same and gave a statement before the said court affirming the terms of the compromise which statement was recorded by the Family Court and the proceedings were dropped and a divorce was obtained. Therefore, we are of the opinion that the appellant having received the relief she wanted without contest on the basis of the terms of the compromise, we cannot now accept the argument of the learned counsel for the appellant. In our opinion, the conduct of the appellant indicates that the criminal complaint from which this appeal arises was filed by the wife only to harass the respondents.

8. In view of the above said subsequent events and the conduct of the appellant, it would be an abuse of the process of the court if the criminal proceedings from which this appeal arises is allowed to continue. Therefore, we are of the considered opinion to do complete justice, we should while dismissing this appeal also quash proceedings arising from the criminal case No. Cr.No.224/2003 registered in Police Station, Bilaspur, (Distt. Rampur) filed under Sections 498-A, 323 and 506 IPC and under Sections 3 and 4 of the Dowry Prohibition Act against the respondents herein. It is ordered accordingly. The appeal is disposed of."

In the present case, petitioner No.1 was married with respondent No.2. Parties developed some differences thereafter. A perusal of Annexure P5 judgment passed in the petition under Section 13-B

of the Act reveals that both the parties undertook not to file any legal proceedings against each other. It was settled between the parties that the present respondent No.2 will withdraw the case under Sections 498-A, 406 IPC and petition under Section 125 Cr.P.C filed by her against the present petitioner No.1. The present respondent No.2 had received all the dowry articles and permanent alimony for herself as well as for the minor children. It was decided between the parties that the present respondent No.2 shall be responsible for maintenance of her minor children and present petitioner No.1 had relinquished his right to the custody of the children. The decree of divorce on the basis of mutual consent was passed on 6.6.2008. As per the marriage certificate (Annexure P6), Kamaljit Kaur has since performed marriage with Rajinder Raja on 12.12.2007. The fact that the daughter of respondent No.3 had got a divorce from petitioner No.1 was admitted by respondent No.1 in her cross-examination. The said fact is evident from the statement of respondent No.3- Manjit Kuar (Annexure P7) recorded during trial. She also admitted that the parties had agreed to withdraw the pending cases. Her daughter had withdrawn maintenance case.

Thus, it is evident that the parties had arrived at a compromise and due to the said compromise, petitioner No.1 and respondent No.2 had got a decree of divorce on the basis of mutual consent. As per the marriage certificate placed on record, respondent No.2 has got remarried. In these circumstances, continuation of the present criminal proceedings are nothing but an abuse of process of law. After having settled the dispute, respondents No. 2 and 3 cannot be allowed to continue with the criminal proceedings.

Accordingly, this petition is allowed. FIR No. 179 dated 19.9.2006 registered under Sections 406, 498-A IPC at Police Station Kapurthala as well as the subsequent proceedings arising out therefrom are quashed .

(Sabina) Judge April 23, 2010 arya